

## Diver Medical | Participant Questionnaire

Recreational scuba diving and freediving requires good physical and mental health. There are a few medical conditions which can be hazardous while diving, listed below. Those who have, or are predisposed to, any of these conditions, should be evaluated by a physician. This Diver Medical Participant Questionnaire provides a basis to determine if you should seek out that evaluation. If you have any concerns about your diving fitness not represented on this form, consult with your physician before diving. If you are feeling ill, avoid diving. If you think you may have a contagious disease, protect yourself and others by not participating in dive training and/or dive activities. References to "diving" on this form encompass both recreational scuba diving and freediving. This form is principally designed as an initial medical screen for new divers, but is also appropriate for divers taking continuing education. For your safety, and that of others who may dive with you, answer all questions honestly.

### Directions

**Complete this questionnaire as a prerequisite to a recreational scuba diving or freediving course.**

**Note to women:** If you are pregnant, or attempting to become pregnant, *do not dive*.

|    |                                                                                                                                                                                                                                                                           |                                                    |                             |
|----|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------|-----------------------------|
| 1  | I have had problems with my lungs, breathing, heart and/or blood affecting my normal physical or mental performance.                                                                                                                                                      | Yes <input type="checkbox"/><br>Go to box <b>A</b> | No <input type="checkbox"/> |
| 2  | I am over 45 years of age.                                                                                                                                                                                                                                                | Yes <input type="checkbox"/><br>Go to box <b>B</b> | No <input type="checkbox"/> |
| 3  | I struggle to perform moderate exercise (for example, walk 1.6 kilometer/one mile in 14 minutes or swim 200 meters/yards without resting), OR I have been unable to participate in a normal physical activity due to fitness or health reasons within the past 12 months. | Yes <input type="checkbox"/> *                     | No <input type="checkbox"/> |
| 4  | I have had problems with my eyes, ears, or nasal passages/sinuses.                                                                                                                                                                                                        | Yes <input type="checkbox"/><br>Go to box <b>C</b> | No <input type="checkbox"/> |
| 5  | I have had surgery within the last 12 months, OR I have ongoing problems related to past surgery.                                                                                                                                                                         | Yes <input type="checkbox"/> *                     | No <input type="checkbox"/> |
| 6  | I have lost consciousness, had migraine headaches, seizures, stroke, significant head injury, or suffer from persistent neurologic injury or disease.                                                                                                                     | Yes <input type="checkbox"/><br>Go to box <b>D</b> | No <input type="checkbox"/> |
| 7  | I am currently undergoing treatment (or have required treatment within the last five years) for psychological problems, personality disorder, panic attacks, or an addiction to drugs or alcohol; or, I have been diagnosed with a learning or developmental disability.  | Yes <input type="checkbox"/><br>Go to box <b>E</b> | No <input type="checkbox"/> |
| 8  | I have had back problems, hernia, ulcers, or diabetes.                                                                                                                                                                                                                    | Yes <input type="checkbox"/><br>Go to box <b>F</b> | No <input type="checkbox"/> |
| 9  | I have had stomach or intestine problems, including recent diarrhea.                                                                                                                                                                                                      | Yes <input type="checkbox"/><br>Go to box <b>G</b> | No <input type="checkbox"/> |
| 10 | I am taking prescription medications (with the exception of birth control or anti-malarial drugs other than mefloquine (Lariam).                                                                                                                                          | Yes <input type="checkbox"/> *                     | No <input type="checkbox"/> |

### Participant Signature

**If you answered NO** to all 10 questions above, a medical evaluation is not required. Please read and agree to the participant statement below by signing and dating it.

**Participant Statement:** I have answered all questions honestly, and understand that I accept responsibility for any consequences resulting from any questions I may have answered inaccurately or for my failure to disclose any existing or past health conditions.

Participant Signature (or, if a minor, participant's parent/guardian signature required.)

Date (dd/mm/yyyy)

Participant Name (Print)

Birthdate (dd/mm/yyyy)

All Professional Staff of Kyalami Charters / Kyalami Scuba Club

Kyalami Charters / Kyalami Scuba Club

Instructor Name (Print)

Facility Name (Print)

\* **If you answered YES** to questions 3, 5 or 10 above **OR** to any of the questions on page 2, please read and agree to the statement above by signing and dating it **AND take all three pages of this form (Participant Questionnaire and the Physician's Evaluation Form) to your physician** for a medical evaluation. Participation in a diving course requires your physician's approval.

## Diver Medical | Participant Questionnaire Continued

|                                                                                                                                                                                                                                             |                                |                             |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------|-----------------------------|
| <b>BOX A – I HAVE/HAVE HAD:</b>                                                                                                                                                                                                             |                                |                             |
| Chest surgery, heart surgery, heart valve surgery, an implantable medical device (eg, stent, pacemaker, neurostimulator), pneumothorax, and/or chronic lung disease.                                                                        | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Asthma, wheezing, severe allergies, hay fever or congested airways within the last 12 months that limits my physical activity/exercise.                                                                                                     | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| A problem or illness involving my heart such as: angina, chest pain on exertion, heart failure, immersion pulmonary edema, heart attack or stroke, OR am taking medication for any heart condition.                                         | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Recurrent bronchitis and currently coughing within the past 12 months, OR have been diagnosed with emphysema.                                                                                                                               | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Symptoms affecting my lungs, breathing, heart and/or blood in the last 30 days that impair my physical or mental performance.                                                                                                               | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| <b>BOX B – I AM OVER 45 YEARS OF AGE AND:</b>                                                                                                                                                                                               |                                |                             |
| I currently smoke or inhale nicotine by other means.                                                                                                                                                                                        | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| I have a high cholesterol level.                                                                                                                                                                                                            | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| I have high blood pressure.                                                                                                                                                                                                                 | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| I have had a close blood relative die suddenly or of cardiac disease or stroke before the age of 50, OR have a family history of heart disease before age 50 (including abnormal heart rhythms, coronary artery disease or cardiomyopathy). | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| <b>BOX C – I HAVE/HAVE HAD:</b>                                                                                                                                                                                                             |                                |                             |
| Sinus surgery within the last 6 months.                                                                                                                                                                                                     | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Ear disease or ear surgery, hearing loss, or problems with balance.                                                                                                                                                                         | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Recurrent sinusitis within the past 12 months.                                                                                                                                                                                              | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Eye surgery within the past 3 months.                                                                                                                                                                                                       | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| <b>BOX D – I HAVE/HAVE HAD:</b>                                                                                                                                                                                                             |                                |                             |
| Head injury with loss of consciousness within the past 5 years.                                                                                                                                                                             | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Persistent neurologic injury or disease.                                                                                                                                                                                                    | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Recurring migraine headaches within the past 12 months, or take medications to prevent them.                                                                                                                                                | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Blackouts or fainting (full/partial loss of consciousness) within the last 5 years.                                                                                                                                                         | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Epilepsy, seizures, or convulsions, OR take medications to prevent them.                                                                                                                                                                    | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| <b>BOX E – I HAVE/HAVE HAD:</b>                                                                                                                                                                                                             |                                |                             |
| Behavioral health, mental or psychological problems requiring medical/psychiatric treatment.                                                                                                                                                | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Major depression, suicidal ideation, panic attacks, uncontrolled bipolar disorder requiring medication/psychiatric treatment.                                                                                                               | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Been diagnosed with a mental health condition or a learning/developmental disorder that requires ongoing care or special accommodation.                                                                                                     | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| An addiction to drugs or alcohol requiring treatment within the last 5 years.                                                                                                                                                               | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| <b>BOX F – I HAVE/HAVE HAD:</b>                                                                                                                                                                                                             |                                |                             |
| Recurrent back problems in the last 6 months that limit my everyday activity.                                                                                                                                                               | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Back or spinal surgery within the last 12 months.                                                                                                                                                                                           | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Diabetes, either drug or diet controlled, OR gestational diabetes within the last 12 months.                                                                                                                                                | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| An uncorrected hernia that limits my physical abilities.                                                                                                                                                                                    | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Active or untreated ulcers, problem wounds, or ulcer surgery within the last 6 months.                                                                                                                                                      | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| <b>BOX G – I HAVE HAD:</b>                                                                                                                                                                                                                  |                                |                             |
| Ostomy surgery and do not have medical clearance to swim or engage in physical activity.                                                                                                                                                    | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Dehydration requiring medical intervention within the last 7 days.                                                                                                                                                                          | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Active or untreated stomach or intestinal ulcers or ulcer surgery within the last 6 months.                                                                                                                                                 | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Frequent heartburn, regurgitation, or gastroesophageal reflux disease (GERD).                                                                                                                                                               | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Active or uncontrolled ulcerative colitis or Crohn's disease.                                                                                                                                                                               | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |
| Bariatric surgery within the last 12 months.                                                                                                                                                                                                | Yes <input type="checkbox"/> * | No <input type="checkbox"/> |



## Non-Agency Disclosure and Acknowledgment Agreement

In European Union and European Free Trade Association countries use alternative form.

**Please read carefully and fill in all blanks before signing.**

I understand and agree that PADI Members ("Members"), including Kyalami Scuba Club and/or any individual PADI Instructors and Divemasters associated with the program in which I am participating, are licensed to use various PADI Trademarks and to conduct PADI training, but are not agents, employees or franchisees of PADI Americas, Inc. or its parent, subsidiary and affiliated corporations ("PADI"). I further understand that Member business activities are independent, and are neither owned nor operated by PADI, and that while PADI establishes the standards for PADI diver training programs, it is not responsible for, nor does it have the right to control, the operation of the Members' business activities and the day-to day conduct of PADI programs and supervision of divers by the Members or their associated staff. I further understand and agree on behalf of myself, my heirs and my estate that in the event of an injury or death during this activity, neither I nor my estate shall seek to hold PADI liable for the actions, inactions or negligence of Kyalami Scuba Club and/or the instructors and divemasters associated with the activity.

## Liability Release and Assumption of Risk Agreement

In European Union and European Free Trade Association countries use alternative form.

**Please read carefully and fill in all blanks before signing.**

I, Participant Name, hereby affirm that I am aware that skin and scuba diving have inherent risks which may result in serious injury or death.

I understand that diving with compressed air involves certain inherent risks; including but not limited to decompression sickness, embolism or other hyperbaric/air expansion injury that require treatment in a recompression chamber. I further understand that the open water diving trips which are necessary for training and for certification may be conducted at a site that is remote, either by time or distance or both, from such a recompression chamber. I still choose to proceed with such instructional dives in spite of the possible absence of a recompression chamber in proximity to the dive site.

I understand and agree that neither my instructor(s), All Professional Staff of Kyalami Scuba Club, the facility through which I receive my instruction, Kyalami Scuba Club,

nor PADI Americas, Inc., nor its affiliate and subsidiary corporations, nor any of their respective employees, officers, agents, contractors or assigns (hereinafter referred to as "Released Parties") may be held liable or responsible in any way for any injury, death or other damages to me, my family, estate, heirs or assigns that may occur as a result of my participation in this diving program or as a result of the negligence of any party, including the Released Parties, whether passive or active.

In consideration of being allowed to participate in this course (and optional Adventure Dive), hereinafter referred to as "program," I hereby personally assume all risks of this program, whether foreseen or unforeseen, that may befall me while I am a participant in this program including, but not limited to, the academics, confined water and/or open water activities.

I further release, exempt and hold harmless said program and Released Parties from any claim or lawsuit by me, my family, estate, heirs or assigns, arising out of my enrollment and participation in this program including both claims arising during the program or after I receive my certification.

**I HAVE FULLY INFORMED MYSELF AND MY HEIRS OF THE CONTENTS OF THIS NON-AGENCY DISCLOSURE AND ACKNOWLEDGEMENT AGREEMENT AND LIABILITY RELEASE AND ASSUMPTION OF RISK AGREEMENT BY READING BOTH BEFORE SIGNING BELOW ON BEHALF OF MYSELF AND MY HEIRS.**

I also understand that skin diving and scuba diving are physically strenuous activities and that I will be exerting myself during this program, and that if I am injured as a result of heart attack, panic, hyperventilation, drowning or any other cause, that I expressly assume the risk of said injuries and that I will not hold the Released Parties responsible for the same.

I further state that I am of lawful age and legally competent to sign this liability release, or that I have acquired the written consent of my parent or guardian. I understand the terms herein are contractual and not a mere recital, and that I have signed this Agreement of my own free act and with the knowledge that I hereby agree to waive my legal rights. I further agree that if any provision of this Agreement is found to be unenforceable or invalid, that provision shall be severed from this Agreement. The remainder of this Agreement will then be construed as though the unenforceable provision had never been contained herein.

I understand and agree that I am not only giving up my right to sue the Released Parties but also any rights my heirs, assigns, or beneficiaries may have to sue the Released Parties resulting from my death. I further represent I have the authority to do so and that my heirs, assigns, or beneficiaries will be estopped from claiming otherwise because of my representations to the Released Parties.

I, Participant Name, BY THIS INSTRUMENT AGREE TO EXEMPT AND RELEASE MY INSTRUCTORS, All Professional Staff of Kyalami Scuba Club, THE FACILITY THROUGH WHICH I RECEIVE MY INSTRUCTION, Kyalami Scuba Club, AND PADI AMERICAS, INC., AND ALL RELATED ENTITIES AS DEFINED ABOVE, FROM ALL LIABILITY OR RESPONSIBILITY WHATSOEVER FOR PERSONAL INJURY, PROPERTY DAMAGE OR WRONGFUL DEATH HOWEVER CAUSED, INCLUDING, BUT NOT LIMITED TO, THE NEGLIGENCE OF THE RELEASED PARTIES, WHETHER PASSIVE OR ACTIVE.

Participant's Signature

Date (Day / Month / Year)

Signature of Parent or Guardian (where applicable)

Date (Day / Month / Year)



## Standard Safe Diving Practices Statement of Understanding

Please read carefully before signing.

This is a statement in which you are informed of the established safe diving practices for skin and scuba diving. These practices have been compiled for your review and acknowledgement and are intended to increase your comfort and safety in diving. Your signature on this statement is required as proof that you are aware of these safe diving practices. Read and discuss the statement prior to signing it. If you are a minor, this form must also be signed by a parent or guardian.

I, \_\_\_\_\_ (Print Name), understand that as a diver I should:

1. Maintain good mental and physical fitness for diving. Avoid being under the influence of alcohol or dangerous drugs when diving. Keep proficient in diving skills, striving to increase them through continuing education and reviewing them in controlled conditions after a period of diving inactivity, and refer to my course materials to stay current and refresh myself on important information.
2. Be familiar with my dive sites. If not, obtain a formal diving orientation from a knowledgeable, local source. If diving conditions are worse than those in which I am experienced, postpone diving or select an alternate site with better conditions. Engage only in diving activities consistent with my training and experience. Do not engage in cave or technical diving unless specifically trained to do so.
3. Use complete, well-maintained, reliable equipment with which I am familiar; and inspect it for correct fit and function prior to each dive. Have a buoyancy control device, low-pressure buoyancy control inflation system, submersible pressure gauge and alternate air source and dive planning/monitoring device (dive computer, RDP/dive tables—whichever you are trained to use) when scuba diving. Deny use of my equipment to uncertified divers.
4. Listen carefully to dive briefings and directions and respect the advice of those supervising my diving activities. Recognize that additional training is recommended for participation in specialty diving activities, in other geographic areas and after periods of inactivity that exceed six months.
5. Adhere to the buddy system throughout every dive. Plan dives – including communications, procedures for reuniting in case of separation and emergency procedures – with my buddy.
6. Be proficient in dive planning (dive computer or dive table use). Make all dives no decompression dives and allow a margin of safety. Have a means to monitor depth and time underwater. Limit maximum depth to my level of training and experience. Ascend at a rate of not more than 18 metres/60 feet per minute. Be a **SAFE** diver – **Slowly Ascend From Every** dive. Make a safety stop as an added precaution, usually at 5 metres/15 feet for three minutes or longer.
7. Maintain proper buoyancy. Adjust weighting at the surface for neutral buoyancy with no air in my buoyancy control device. Maintain neutral buoyancy while underwater. Be buoyant for surface swimming and resting. Have weights clear for easy removal, and establish buoyancy when in distress while diving. Carry at least one surface signaling device (such as signal tube, whistle, mirror).
8. Breathe properly for diving. Never breath-hold or skip-breathe when breathing compressed air, and avoid excessive hyperventilation when breath-hold diving. Avoid overexertion while in and underwater and dive within my limitations.
9. Use a boat, float or other surface support station, whenever feasible.
10. Know and obey local dive laws and regulations, including fish and game and dive flag laws.

**I understand the importance and purposes of these established practices. I recognize they are for my own safety and well-being, and that failure to adhere to them can place me in jeopardy when diving.**

Participant's Signature

Date (Day/Month/Year)

Signature of Parent or Guardian (where applicable)

Date (Day/Month/Year)



**PADI®**

## ENRICHED AIR (NITROX) DIVER TRAINING

Please read carefully and fill in all blanks before signing.

### Non-Agency Disclosure and Acknowledgment Agreement

I understand and agree that PADI Members ("Members"), including Kyalami Charters / Kyalami Scuba Club and/or any individual PADI Instructors and Divemasters associated with the program in which I am participating, are licensed to use various PADI Trademarks and to conduct PADI training, but are not agents, employees or franchisees of PADI Americas, Inc. or its parent, subsidiary and affiliated corporations ("PADI"). I further understand that Member business activities are independent, and are neither owned nor operated by PADI, and that while PADI establishes the standards for PADI diver training programs, it is not responsible for, nor does it have the right to control, the operation of the Members' business activities and the day-to-day conduct of PADI programs and supervision of divers by the Members or their associated staff. I further understand and agree on behalf of myself, my heirs and my estate that in the event of an injury or death during this activity, neither I nor my estate

shall seek to hold PADI liable for the actions, inactions or negligence of Kyalami Charters / Kyalami Scuba Club and/or the instructors and divemasters associated with the activity.

### Liability Release and Assumption of Risk Agreement

I, Participant Name, hereby affirm that I am aware that scuba diving has inherent risks which may result in serious injury or death, and am aware of the particular hazards of scuba diving with oxygen enriched air.

I understand that diving with compressed air involves certain inherent risks; including but not limited to decompression sickness, embolism or other hyperbaric/air expansion injury that require treatment in a recompression chamber. I also understand that diving with oxygen enriched air ("Enriched Air") involves inherent risks of oxygen toxicity and/or improper mixtures of breathing gas. I further understand that the open water diving trips which are necessary for training and for certification may be conducted at a site that is remote, either by time or distance or both, from such a recompression chamber. I still choose to proceed with such instructional dives in spite of the possible absence of a recompression chamber in proximity to the dive site.

I understand and agree that neither my instructor(s), the facility through which I receive my instruction, Kyalami Charters / Kyalami Scuba Club, nor PADI Americas, Inc., nor its affiliate and subsidiary corporations, nor any of their respective employees, officers, agents, contractors or assigns (hereinafter referred to as "Released Parties,") may be held liable or responsible in any way for any injury, death or other damages to me, my family, estate, heirs or assigns that may occur as a result of my participation in this diving program or as a result of the negligence of any party, including the Released Parties, whether passive or active.

In consideration of being allowed to participate in this course, I hereby personally assume all risks of this program, whether foreseen or unforeseen, that may befall me while I am a participant in this program including all risks connected therewith, whether foreseen or unforeseen.

I further release, exempt and hold harmless said course and Released Parties from any claim or lawsuit by me, my family, estate, heirs or assigns, arising out of my enrollment and participation in this course including both claims arising during the course or after I receive my certification.

I also understand that scuba diving is a physically strenuous activity and that I will be exerting myself during this course, and that if I am injured as a result of heart attack, panic, hyperventilation, drowning or any other cause, that I expressly assume the risk of said injuries and that I will not hold the Released Parties responsible for the same.

I will inspect all of my equipment prior to the activities and will notify the Released Parties if any of my equipment is not working properly. I will not hold the Released Parties responsible for my failure to inspect my equipment prior to diving.

I further state that I am of lawful age and legally competent to sign this liability release, or that I have acquired the written consent of my parent or guardian.

I understand the terms herein are contractual and not a mere recital, and that I have signed this Agreement of my own free act and with the knowledge that I hereby agree to waive my legal rights. I further agree that if any provision of this Agreement is found to be unenforceable or invalid, that provision shall be severed from this Agreement. The remainder of this Agreement will then be construed as though the unenforceable provision had never been contained herein.



# **EQUIPMENT USE AND LEASE AGREEMENT**

## ***(LIABILITY AND ASSUMPTION OF RISK)***

(Valid for the duration of the enrolled PBA scuba course · not to exceed six (6) months from signing)

THIS AGREEMENT is entered into between Kyalami Scuba Club Inc. and Kyalami Charters Inc., and the renter, for the rental of scuba diving equipment. This AGREEMENT is a release of my rights to sue for the injuries or death resulting from the rental and/or use of this equipment.

I expressly assume all risks of scuba diving related in any way to the rental and/or use of this equipment. I hereby acknowledge receipt of the equipment designated in this form, and if any of this equipment is to be used for scuba diving I affirm I am a CERTIFIED SCUBA DIVER or STUDENT DIVER in a Scuba Diving Course/Program under the supervision of a CERTIFIED Scuba Instructor.

I acknowledge that the equipment is in good working condition and that I have examined the equipment to ensure that it is free from defects, including checking both the quality and the quantity of gas in any scuba tank(s) rented.

I acknowledge that Scuba Diving is a physically strenuous activity, that I will be exerting myself during this activity, and that if I am injured as a result of heart attack, panic, hyperventilation, drowning or any other cause, that I expressly assume the risk of said injuries and that I will not hold the Released Parties responsible for the same.

I also understand and agree that Kyalami Scuba Club Inc. and Kyalami Charters Inc., and their employees, owners, officers, agents, independent contractors, dive professionals, boat captains, crew, and dive boats (whether owned, operated, leased, or chartered) (hereinafter the "Released Parties"), shall not be held liable or responsible in any way for any injury, death or other damages to me or my equipment, whether resulting from product defect or the negligence of any party, including the Released Parties, whether passive or active.

I agree to reimburse the Dive Charter for loss or breakage of any and all equipment at the current replacement value and to also pay for damages incurred while transporting the equipment.

I agree to return the equipment in clean condition.

I further state I am of lawful age and legally competent to sign this liability release. I understand the terms herein are contractual and not a mere recital, and that I have signed this document of my own free act and with the knowledge that I hereby agree to waive my legal rights. I further agree that if any provision of this Agreement is found to be unenforceable or invalid, that provision shall be severed from this Agreement. The remainder of this Agreement will then be construed as though the unenforceable provision had never been contained herein.

I understand and agree that I am not only giving up my right to sue the Released Parties but also any rights my heirs, assigns, or beneficiaries may have to sue the Released Parties resulting from my death. I further represent I have the authority to do so and that my heirs, assigns or beneficiaries will be estopped from claiming otherwise because of my representations to the Released Parties.

**I HAVE CAREFULLY READ AND UNDERSTAND THE ABOVE AGREEMENT. BY SIGNING THIS AGREEMENT, I EXEMPT AND RELEASE THE RELEASED PARTIES AND ALL RELATED ENTITIES AS DEFINED ABOVE, FROM ALL LIABILITY OR RESPONSIBILITY WHATSOEVER FOR PERSONAL INJURY, PROPERTY DAMAGE, OR WRONGFUL DEATH AS A RESULT OF RENTING AND/OR USING THE EQUIPMENT, HOWEVER CAUSED, INCLUDING, BUT NOT LIMITED TO, PRODUCT LIABILITY OR THE NEGLIGENCE OF THE RELEASED PARTIES, WHETHER PASSIVE OR ACTIVE. I HAVE FULLY INFORMED MYSELF AND MY HEIRS OF THE CONTENTS OF THIS LIABILITY RELEASE AND ASSUMPTION OF RISK AGREEMENT BY READING IT BEFORE I SIGNED IT ON BEHALF OF MYSELF AND MY HEIRS.**

Participant Name

Participant Signature

Date

Guardian Name

Guardian Signature

Date





# Youth Diving: Responsibility and Risks Acknowledgment

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(Please read carefully, fill in all blanks, and sign and date below.)

I/we, \_\_\_\_\_, and my/our child, \_\_\_\_\_, have viewed and understand the Youth Diving: Responsibility and Risks video or flip chart. We affirm we have been advised and thoroughly informed that diving is an adventure sport with inherent risks to the participant. These risks may include, but are not limited to, pressure related injuries affecting the lungs, sinuses and ears, drowning, panic and other serious injury or death. We also understand our responsibilities, as parent and participant (child), in participating in scuba activities and agree to accept those responsibilities.

As the parent/guardian of the minor child, I/we understand and agree it is solely my/our responsibility to evaluate whether my/our child should participate in scuba activities. Our decision is based upon our knowledge of the mental, physical and emotional abilities of our child, as well as his/her medical history. I/we understand and agree it is my/our responsibility to discuss with a physician any questions I/we have regarding my/our child's medical history and participation in this activity.

I/we understand and agree that it is my/our responsibility to continue to monitor the abilities and health of my/our child to determine whether he/she should continue in this program and continue to dive after the program.

I/we agree to abide by all supervisory and depth limitations that may accompany my/our child's PADI certification.

I/we understand that PADI certifies instructors/dive centers and provides materials for programs developed by PADI.

I/we understand that the dive center/resort and the instructor are responsible for the conduct and supervision of this activity

I/we understand my responsibilities and those of my child as set forth in the Youth Diving Responsibilities and Risk video or flip chart.

I/we have read this Acknowledgment, understand and agree to the terms and conditions, and understand and agree that this Acknowledgment is a binding contract between us, the dive professional, the dive facility and PADI.

\_\_\_\_\_  
Parent/Guardian Name

\_\_\_\_\_  
Parent/Guardian Signature

\_\_\_\_\_  
(Day/Month/Year)

\_\_\_\_\_  
Participant/Minor Name

\_\_\_\_\_  
Participant/Minor Signature

\_\_\_\_\_  
(Day/Month/Year)



# FLORIDA ADDENDUM NOTICE TO THE MINOR CHILD'S PARENT OR NATURAL GUARDIAN

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**READ THIS FORM COMPLETELY AND CAREFULLY. YOU ARE AGREEING TO LET YOUR MINOR CHILD ENGAGE IN A POTENTIALLY DANGEROUS ACTIVITY. YOU ARE AGREEING THAT EVEN IF Kyalami Charters / Kyalami Scuba Club, AND/OR PADI AMERICAS, INC., OR ANY OF THEIR AFFILIATE AND SUBSIDIARY CORPORATIONS, RESPECTIVE EMPLOYEES, OFFICERS, AGENTS, CONTRACTORS, INDEPENDENT CONTRACTORS, DIVE PROFESSIONALS, INSTRUCTORS AND ASSIGNS, USE REASONABLE CARE IN PROVIDING THIS ACTIVITY, THERE IS A CHANCE YOUR CHILD MAY BE SERIOUSLY INJURED OR KILLED BY PARTICIPATING IN THIS ACTIVITY BECAUSE THERE ARE CERTAIN DANGERS INHERENT IN THE ACTIVITY WHICH CANNOT BE AVOIDED OR ELIMINATED. BY SIGNING THIS FORM YOU ARE GIVING UP YOUR CHILD'S RIGHT AND YOUR RIGHT TO RECOVER FROM Kyalami Charters / Kyalami Scuba Club, AND/OR PADI AMERICAS, INC., OR ANY OF THEIR AFFILIATE AND SUBSIDIARY CORPORATIONS, RESPECTIVE EMPLOYEES, OFFICERS, AGENTS, CONTRACTORS, INDEPENDENT CONTRACTORS, DIVE PROFESSIONALS, INSTRUCTORS AND ASSIGNS IN A LAWSUIT FOR ANY PERSONAL INJURY, INCLUDING DEATH, TO YOUR CHILD OR ANY PROPERTY DAMAGE THAT RESULTS FROM THE RISKS THAT ARE A NATURAL PART OF THE ACTIVITY. YOU HAVE THE RIGHT TO REFUSE TO SIGN THIS FORM, AND Kyalami Charters / Kyalami Scuba Club, AND/OR PADI AMERICAS, INC., OR ANY OF THEIR AFFILIATE AND SUBSIDIARY CORPORATIONS, RESPECTIVE EMPLOYEES, OFFICERS, AGENTS, CONTRACTORS, INDEPENDENT CONTRACTORS, DIVE PROFESSIONALS, INSTRUCTORS AND ASSIGNS HAVE THE RIGHT TO REFUSE TO LET YOUR CHILD PARTICIPATE IF YOU DO NOT SIGN THIS FORM.**

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Signature of Parent of Natural Guardian (where applicable)

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Date (Day/Month/Year)

**Please identify minor child/children participants below:**  
(Minor Child means person under the age of 18)

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Minor Child Name

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Birth Date (Day/Month/Year)